

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 2936

By: Olsen

AS INTRODUCED

An Act relating to children; amending 10 O.S. 2021, Section 557.5, which relates to the Oklahoma Gestational Agreement Act; prohibiting person from being an intended parent to a gestational agreement if individual has been convicted of a crime against a child; amending 10 O.S. 2021, Section 7505-5.1, as amended by Section 1, Chapter 59, O.S.L. 2024 (10 O.S. Supp. 2025, Section 7505-5.1), which relates to the Oklahoma Adoption Code; prohibiting placement of child in home if petitioners or any person residing in home of petitioners have been convicted of a crime against a child; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10 O.S. 2021, Section 557.5, is amended to read as follows:

Section 557.5. A. The following persons, and only the following persons, are necessary parties to a gestational agreement, and a gestational agreement shall not be validated if all such applicable necessary parties have not joined in the gestational agreement in compliance with the Oklahoma Gestational Agreement Act:

1. The gestational carrier;
2. The gestational spouse, if applicable; and

1 3. Each intended parent of a child to be born pursuant to a
2 gestational carrier arrangement.

3 B. The following requirements apply to the necessary parties to
4 a gestational agreement, and failure to meet such requirements shall
5 prevent a court from validating the gestational agreement:

6 1. The gestational carrier, the gestational spouse, if
7 applicable, and each intended parent must be at least twenty-one
8 (21) years of age at the time the parties enter into the gestational
9 agreement;

10 2. No more than two intended parents may be party to a
11 gestational agreement;

12 3. If an intended parent is married, then that intended
13 parent's spouse must be a party to the gestational agreement as an
14 intended parent; and

15 4. If there are two intended parents that are party to a
16 gestational agreement, then they must be married to each other; ~~and.~~

17 ~~5.~~ C. No person may be a party to a gestational agreement under
18 this act if such person is in the United States illegally pursuant
19 to the immigration laws of the United States in effect at the time
20 of a gestational agreement.

21 D. No person may be an intended parent of a child to be born
22 pursuant to a gestational carrier agreement under this act if such
23 person has been convicted of a crime against a child, including, but
24 not limited to, child sexual abuse, child sexual exploitation, or

1 lewd molestation of a child, as defined in Section 843.5 of Title 21
2 of the Oklahoma Statutes.

3 SECTION 2. AMENDATORY 10 O.S. 2021, Section 7505-5.1, as
4 amended by Section 1, Chapter 59, O.S.L. 2024 (10 O.S. Supp. 2025,
5 Section 7505-5.1), is amended to read as follows:

6 Section 7505-5.1. A. Except as otherwise provided in this
7 section, only a person for whom a favorable written preplacement
8 home study has been prepared may accept custody of a minor for
9 purposes of adoption. A preplacement home study is favorable if it
10 contains a finding that the person is suited to be an adoptive
11 parent, either in general or for a particular minor, and it is
12 completed or brought current within twelve (12) months next
13 preceding a placement of a minor with the person for adoption.

14 B. A preplacement home study is not required if a parent or
15 guardian places a minor directly with a relative of the minor for
16 purposes of adoption, or if the minor has been residing with a birth
17 parent's spouse for not less than one (1) year as of the date the
18 petition for adoption is filed, but a home study of the relative or
19 stepparent is required during the pendency of a proceeding for
20 adoption.

21 C. A prospective adoptive parent shall not be approved for
22 placement of a child if the petitioners or any other person residing
23 in the home of the petitioners has been convicted of any of the
24 following felony offenses:

1 1. Within the five-year period preceding the date of the
2 petition, physical assault, domestic abuse, battery or a drug-
3 related offense;

4 2. Child abuse or neglect;

5 3. A crime against a child, including, but not limited to,
6 child sexual abuse ~~material~~, child sexual exploitation, or lewd
7 molestation of a child, as defined in Section 843.5 of Title 21 of
8 the Oklahoma Statutes; and

9 4. A crime involving violence, including, but not limited to,
10 rape, sexual assault or homicide, but excluding those crimes
11 specified in paragraph 1 of this subsection.

12 D. Under no circumstances shall a child be placed in the
13 custody of an individual subject to the Oklahoma Sex Offenders
14 Registration Act or an individual who is married to or living with
15 an individual subject to the Oklahoma Sex Offenders Registration
16 Act.

17 SECTION 3. This act shall become effective November 1, 2026.

18
19 60-2-14104 CMA 12/01/25
20
21
22
23
24